

IN THE [COURT THAT HANDLED THIS CASE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION FOR A VACATED OR REVERSED CONVICTION NOT RETRIED, PURSUANT TO O.C.G.A. § 35-3-37(j)(2)

STATUTORY AUTHORITY

O.C.G.A. § 35-3-37(j)(2) – Where an individual was convicted of an offence and sentenced to a punishment other than the death penalty, the conviction was vacated by the trial court or reversed by an appellate or other post-conviction court, that decision became final by the completion of the appellate process, and the prosecuting attorney has not retried the case within two years of the date the vacating or reversing order became final, the individual may petition the court in which he or she was convicted to restrict access to criminal history record information for the offence.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Georgia in Sample County (synthetic sample venue) that handled the underlying criminal case, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.
4. Plaintiff is the State of Georgia.

III. FACTS AND CASE HISTORY

5. On or about 11/02/2017, Defendant was charged with Offence stated in the participant's own conviction record (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 05/09/2019, the matter was resolved with the following disposition: Convicted; conviction later vacated by the trial court and not retried (synthetic sample disposition).

8. The offense grade was: Felony (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for record restriction on the following basis: record

restriction under O.C.G.A. § 35-3-37(j)(2) (Defendant states the conviction was vacated, the decision became final, and the case has not been retried within two years).

10. Defendant states the sentence imposed was a punishment other than the death penalty (synthetic sample answer).

11. Defendant states the conviction was vacated by the trial court on a date stated in Defendant's own court record (synthetic sample answer).

12. Defendant states that decision became final through completion of the appellate process, and that more than two years have passed since it became final (synthetic sample answer).

13. Defendant states the prosecuting attorney has not retried the case at any time since that date (synthetic sample answer).

14. In Defendant's own words: the record has continued to be a barrier since the conviction was set aside (synthetic sample participant narrative).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the record restriction of the criminal history record information for the vacated or reversed offence in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE

1000 Sample Street, Atlanta, GA 30303

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Notice to the prosecuting attorney. Service by certified mail, e-filing or hand delivery, certified in a certificate of service.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY SERVICE ADDRESS – CONFIRM WITH THE CLERK OF THE COURT THAT HANDLED THIS CASE]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT THAT HANDLED THIS CASE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA v. JOHN DOE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample City Police Department (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to restrict access to all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.